

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTIONS 10.82.030 AND 10.82.040 OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, MODIFYING THE TERM OF DOCKLESS VEHICLE LICENSES, SPECIFYING AN EFFECTIVE DATE AND MAKING OTHER CONFORMING AMENDMENTS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 10.82.030, Dockless Vehicle License, and Section 10.82.040, Issuance, Renewal, Suspension, and Revocation of License, of Chapter 10.82, Motor-Assisted Scooters, Electric Bicycles, and Bicycles Equipped with GPS, of Title10, Vehicles and Traffic, of the City of Cheyenne, Wyoming, is hereby amended as set out in this ordinance.

10.82.030 - Dockless vehicle license.

- A. A person must register and obtain a license from the city, and pay any applicable fees, prior to providing a dockless vehicle for any compensation including, but not limited to, any money, thing of value, payment, consideration, donation, gratuity, or profit.
- B. Unless otherwise specified under subsection (F) of this section, to obtain a license, a person must submit an application to the city clerk's office on a form provided by the city clerk's office for that purpose. The application must contain the following, including any additional information and requirements established by the director:
 - 1. The business name, street address, mailing address, e-mail address, and telephone number of the applicant;
 - 2. A non-refundable annual license fee of two hundred dollars (\$200.00);
 - 3. A non-refundable annual license fee of five dollars (\$5.00) for each dockless vehicle which is to be operated within the city limits of the city of Cheyenne;
 - 4. The name, telephone number, and e-mail address of the fleet manager. Any change in this information must be reported to the director within twenty-four (24) hours of the change;
 - 5. A phone number for the public to report improperly parked dockless vehicles and other violations, which must be posted on each dockless vehicle;
 - 6. The address of the fixed facilities to be used in the operation, if any, and the address of the applicant's headquarters, if different from the address of the fixed facilities;

7. Documentary evidence from an insurance company indicating that such insurance company has bound itself to provide the applicant with the liability insurance required by this chapter;
 8. Documentary evidence of payment of ad valorem and sales taxes on property within the city, if any, to be used in connection with the operation of the proposed dockless vehicle program;
 9. The number and the types of dockless vehicles to be operated; and
 10. An agreement to indemnify the city.
- C. Except as provided in subsection (B)(4) of this section, an applicant or registrant shall notify the director, in the manner prescribed by the director, within ten (10) days of any change in the information contained in the application for a license. If the information reported to the director includes an increase in the number of dockless vehicles, any additional fees due must be submitted to the director simultaneously with the change in information.
- D. Unless otherwise specified under subsection (F) of this section, a license expires one year from the date it is issued. An applicant may renew a license following the process in this section.
- E. A license is non-transferrable. This regulation should not be construed to impede the continuing use of trade names.
- F. Notwithstanding any licensing provision to the contrary imposed under this section or Section 10.82.040 of this chapter, any person seeking to provide a dockless vehicle for any compensation on or after June 1, 2024, may only do so upon receipt of a license issued by the city clerk's office, which license shall only be effective for a term of one (1) month from the time of issuance and shall be subject to the following conditions and requirements:
1. The monthly license authorized under this subsection may be renewed on a monthly basis subject to any additional information and requirements established by the director;
 2. A non-refundable monthly license fee of seventeen dollars (\$17.00) shall be submitted by the applicant prior to the issuance or renewal of any license under this subsection;
 3. A non-refundable monthly fee of fifty cents (\$0.50) for each dockless vehicle which is to be operated within the city limits of the city of Cheyenne shall be submitted by the applicant prior to the issuance of any license or renewal under this subsection; and
 4. The director shall not be required to approve any license application or renewal application submitted under this subsection, regardless of whether the applicant otherwise qualifies for a license or to have a license renewed, if the approval would be

contrary to the public interest. Any application that is denied under this paragraph shall not be entitled to administrative review by the city.

10.82.040 - Issuance, renewal, suspension, and revocation of license.

- A. The director shall refuse to issue or renew a license if the applicant:
1. Does not meet the requirements in the license application, including failing to meet any requirements established by the director;
 2. Intentionally or knowingly makes a false statement as to a material matter in an application for a license; ~~or~~
 3. Has been convicted twice within a twelve-month period for a violation of this chapter or has had a license revoked within two years of the date of application; ~~or~~ or
 4. Is applying for or seeks to renew an annual license under Section 10.82.030 on or after June 1, 2024.
- B. If the director denies a license, the director shall notify the applicant or operator in writing that the application is denied and include in the notice the specific reason or reasons for denial and a statement informing the applicant or operator of the right to appeal the decision, pursuant to the city's Administrative Hearing Procedure, Chapter 2.92 of the city code. The right to appeal specified in this subsection, shall not apply to the denial of any license under Section 10.82.030(F)(4) of this chapter.
- C. The director shall revoke a license if the director determines that the license holder has:
1. Made a false statement as to a material matter in the application;
 2. Failed to maintain the insurance required by this chapter;
 3. Operated dockless vehicles in excess of the number authorized by the license; or
 4. Failed to pay a fee required by this chapter.
- D. After revocation of a license, an operator is not eligible for another license for a period of up to two years, depending on the severity of the violation resulting in the revocation, as determined by the director.
- E. Except as otherwise provided by Section 10.82.030(F) of this chapter, any person whose application for a license, or renewal of a license, is denied by the director, or an operator whose license has been revoked or suspended by the director, may file an appeal with the city clerk in accordance with the city's administrative hearing procedure, Chapter 2.92 of the city code.

Section 2. Upon the effective date of this ordinance, no person shall be issued an annual license and no application to renew an annual license shall be approved under Sections 10.82.030 or 10.82.040 of the municipal code of the City of Cheyenne, Wyoming. No person shall be entitled to administrative review under this section. This section shall not apply to monthly licenses as otherwise authorized under this ordinance.

Section 3. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 4. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
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